

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV414045	Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al	Motion for Attorney's Fees and Cost OFF CALENDAR. On July 30, 2026, the parties stipulated to continue this motion for attorney's fees to August 11, 2026 at 9:00 a.m. in Department 1 to join the motion to strike cost.
<u>LINE 2</u>	23CV416906	Emilia Arroyo vs Juan Manuel Salas, Jr.	Demurrer Scroll down to Line 2 for Tentative Ruling.
<u>LINES 3-4</u>	24CV431877	Robert Hayter, II vs Bella Nguyen et al	Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions Defendant Bella Nguyen filed two motions: (1) motion to compel responses to form interrogatories, set one and sanctions; and (2) motion to compel request for production of documents, set one and sanctions on November 21, 2025. The motion was accompanied by a proof of service indicating mail service to Plaintiff Robert Hayter, II. Both motions were set for hearing on July 30, 2026. The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Per ex parte papers filed by the plaintiff seeking a continuance, the Honorable Mark Flannagan CONTINUED both motions to September 8, 2026 at 9:00 a.m. in Department 1.